

FIRST INFORMATION REPORT
(Under Sec. 173 B.N.S.S 2023)

1. District : PS: Year: FIR No.: Date:
New Delhi CBI/SC-III/ND 2024 RC- 12(S)/2024/CBI/SC-III/ND 16.10.2024
2. (1) Act Sections:
(2) Act IPC Sections: 34, 120-B r/w 166,167,177,193,201,
203,219,220,466,474

3. (a) **Suspected Offence-**

Criminal Conspiracy, Public servant disobeying of law with intent to cause injury to any person, Public servant framing an incorrect document with intent to cause injury, Furnishing false information, Causing disappearance of evidence of an offence, or giving false information to screen offender, Public servant in judicial custody corruptly making report etc. contrary to law, Commitment for trial or confinement by person having authority who knows that his acting contrary to law, Forgery of record of court or of public register etc. and having possession of documents described in section 466 or 467 knowing it to be forged and intending to used it as genuine.

Day: Date: Time:
Information received at PS: CBI, SPECIAL CRIME-III, NEW DELHI
Entry No.:- 03 Date: 16.10.2024 Time: 1600 Hrs.

4. Type of information (Written / Oral): Written
5. Place of occurrence : Pune City, Maharashtra
- (a) Direction & Distance from
Beat No. :
Address :
(b) In case, outside the limit of this Police Station, then
Name of PS - District -


16/10

6. Complainant / Informant. : On the basis of complaint
- (a) Name : Nikhil Nandkumar Pingale, DCP,
Crime Branch, Pune City, Pune,
Maharashtra
- (b) Father's/Husband's Name :
- (c) Date of Birth : 1990
- (d) Nationality : Indian
- (e) Passport No. :
- (f) Profession :
- (g) Address : 1. Present Address: Pune City, Bund
Garden, Pune City, Maharashtra,
India.
2. Permanent Address:- Police
Commissioner Office, Pune City,
Maharashtra, India.
7. Details of known/suspected/unknown accused with full particulars:
(Attached separate sheet, if necessary)
- (i) Ms. Bhagyashree Navtakke, C/31, Queens Gardens, Gulmohar,
Town/Village; Government Officer Quarters, Tehsil; Police Station,
Bundgarden, District: Pune, State: Maharashtra, India.
- (ii) And others.
8. Reasons for delay in reporting by the complainant/informant: **NO DELAY**
9. Particulars of properties Stolen (Attach separate sheet, if necessary): **NA**
10. Total value of property stolen: **NA**
11. Inquest Report/U.D. Case No., if any: **NA**
12. First information contents (Attach separate sheet, if required):

In pursuance of the consent of the State Government of Maharashtra, Home Department, Mumbai vide Notification No. Complaint-1924/CR. 74/POI-2 dated 30.08.2024 issued under Section 6 of DSPE Act, 1946 and subsequently the Government of India has also issued Notification Vide F.No.228/81/2024-ADV-

II dated 16.10.2024 under Section 5 of DSPE Act, 1946 vide which the investigation of C.R. No. 240/2024 dated 27.08.2024 of Police Station Bund Garden, Pune City has handed over to CBI for investigation of the case. Contents of the FIR is attached as "Annexure-A". Both the said Notifications are enclosed as "Annexure-B".

Copy of FIR No. No. 240/2024 dated 27.08.2024 of Police Station Bund Garden, Pune City, Maharashtra is attached as part of the FIR "Annexure-C".

13. Action taken : **A Regular Case is registered.**

(1) Registered the case and took up the investigation or

(2) Directed (Name of IO) Rank : **Shri H.S. Sachan,
Addl. Supdt. of Police
CBI, Special Crime-III,
New Delhi**

(3) Refused investigation due to or : **NA**

(4) Transferred to PS - District - on point of jurisdiction -

14. Signature/Thumb Impression
of the complainant/informant

Signature of Officer in-charge
Police Station: **CBI/SC-III/New Delhi**


Name: **RAJBIR SINGH**
Rank : **SUPDT. OF POLICE**
CBI/SC-III/NEW DELHI
राजबीर सिंह / RAJBIR SINGH
पुलिस अधीक्षक / Supdt. of Police
के. अ. ब्यूरो, वि. अ. - III, नई दिल्ली
CBI, SC-III, New Delhi

15. Date and time of dispatch to the Court

Signature of recording Officer with
date

Annexure-A

I, Nikhil Pingale, Dy. Commissioner of Police, Crime, remain present in person in the office of Police Commissioner, Pune City and as we have been ordered to lodge complaint on behalf of the said Government vide the Order of Police Commissioner, Pune City bearing No. PoAa/Vachack/Firyad-Aadesh/243/2024 Dt. 27/08/2024, our complaint is as under:

A confidential letter bearing No. Takrar-1924/Pra.Kra. 74/PoLa-2 Date 20/08/2024 signed by the Jr. Secretary, Home Department, Government of Maharashtra has been forwarded to the Director General of Police, Maharashtra State, Mumbai. Wherein, it has been stated that, with reference to the Inquiry Report in respect of action taken in respect of the complaint lodged by the Applicants Mr. Sunil Devkinandan Zanvar and Mr. Kunal Shah pertaining to three crimes registered in Pune District in November, 2020 in respect of Bhaichand Hirachand Raosony Multistate Co-Op. Credit Society at Jalgaon, the office of the Director General of Police, sent the report vide his letter dated 19.03.2024 to the Government for appropriate action. In this regard, Mr. Amitabh Gupta, the then Police Commissioner, Pune City vide letters Dt. 08.05.2024, Dt. 19.06.2024 and Dt. 12.08.2024, Mr. Krushna Prakash, the then Police Commissioner, Pimpri – Chinchwad vide his letter Dt. 14.05.2024, Dr. Abhinav Deshmukh, the then Superintendent of Police, Pune Rural vide his letters Dt. 09.05.2024 and 02.07.2024 and Smt. Bhagyashree Navtakke, the then Dy. Commissioner of Police, Economic Offense Wing, Pune City vide her letter Dt. 28.06.2024, furnished their clarifications to the Government and the Government has taken those into consideration. Vide a letter Dt. 10.08.2024 referred at Sr. No. 7, the Director General of Police, Maharashtra State, Mumbai, has submitted his opinion in respect of involvement of aforementioned concerned officers in the said case and their decision process and the Government is concurrent with the self-explanatory opinion furnished vide the said letter of Director General of Police, Maharashtra State, Mumbai. The action proposed vide Para No. 5 of the said letter is as under.

In order to uncover the whole truth, identify all those involved in abetting this conduct and most importantly, ascertain the true motive for the action of these officials, the Home Department may continue to consider pursuance of a police investigation to bring the matter to its logical conclusion.

Government is hereby giving consent for taking action in accordance with the aforementioned paragraph of Director General of Police, Maharashtra State, Mumbai and further action be taken accordingly with immediate effect. Said letter of the Government has been received by the office of the Police Commissioner, Pune City along with the letter sent from the office of Director General of Police, Maharashtra State, Mumbai bearing No. PoMaSa/22/Bhaichand Hirachand Raisony/ Patsanstha Gunhe/ 231/2015, Dt. 20/08/2024, signed by The Special Inspector General of Police, Law and Order, Mr. Chering Dorje.

After perusing the said letter received as such, as it became mandatory to lodge offence for carrying out police investigation in the said case, vide a letter bearing O.No. PoAa/Pune Shahar/BHR-Patsanstha Gunhe/57/2024, Dt. 21/09/2024, the Police Commissioner, Pune City has sought from the office of Director General of Police copies of report/Papers referred at Sr. Nos. 1 to 7 as mentioned in the letter of the

Government along with concerned documents for arriving at the aforementioned conclusion in the said case.

With reference to the said letter, the letters and documents mentioned in the Government's letter are received from the office of Director General of Police. Perusing those documents, it appeared that, specific issues are revealed. Further, it has been mentioned in the Inquiry Report of the Crime Investigation Department found in the papers received from the office of Director General of Police that, following issues are revealed.

1. Three offences viz. (1) C.R. No. 306/2000, Alandi Police Station, Pimpri Chinchwad, (2) C.R. No. 673/2000, Deccan Police Station, Pune City, and (3) C.R. No. 754/2000, Shikrapur Police Station, Pune Rural are filed immediately back to back on the very day. In view of time of lodging the said offences it appears that, action has been taken with coordination between the police units of Pune City, Pimpri Chinchwad and Pune Rural. The raid action at Jalgaon in all three offences has been taken jointly.
2. With reference to the complaints lodged by the complainant in all three aforementioned offences, it appears that short primary inquiry action has been taken. In all three offences, the Primary Inquiry Reports in respect of the complaint of the Applicant are not available on records. While registering the C.R. No. 306/2020 at Alandi Police Station, the complainant Smt. Malati Avinash Sable was not present in the police station in person. Still, Smt. Prerna Katte has registered the crime hurriedly. While registering the C.R. No. 673/2020 at Deccan Police Station, the Complainant Ms. Ranjana Ghorpade was not present in the police station in person, still the offence was lodged. There is a scope to arrive at conclusion that the offences are lodged over there hurriedly by neglecting the prevailing procedure and with some intentions.
3. It is mentioned in the Affidavit filed by the then Dy. Commissioner of Police, Economic Offence Wing, Pune City Bhagyashree Navtakke on 24/07/2021 in Writ Petition No. 713, 714, 715/2021 in Hon'ble High Court, Mumbai that, charge Sheet has not been filed against Ajay Lalwani, Uday Kankaria, Sureshkumar Bakimchand Jain and Rajesh Suresh Jain.
4. While carrying out valuation of the properties mentioned in the offence through Mr. Ankalagi, the Valuer appointed in the said crimes by the Economic Offence Wing, Pune City, the distress value of the properties was not taken into consideration. The issue that, the said properties were sold in auction in the process of liquidation of the Bhaichand Hirachand Raisonry Credit Society, was also not taken into consideration while carrying out valuation. It appeared that, the valuation of all those properties of BHR carried out by the Mr. Ankalagi, found less than the valuation carried out by all other valuers.
5. In the Forensic Audit Report, Neha Phadake has stated that, the Purchaser, Sai Seva Urban Co-Operative Credit Society Limited, Baramati who have



participated in the E-Tender process of the BHR Credit Society, has purchased the property bearing Shop No. 15, Avdhooth Arcade, Ambegaon Bk, Pune admeasuring about 35.68 sq.mtrs. and while purchasing the same, out of the total amount, it has paid 92.19 percent amount in term of Deposit Receipts lying in it's name itself. It also appears that, after purchasing the property, the said property has been sold to Smt. Swati Kailas Sainkar, R/at: Pune. It appears that, Sai Seva Urban Co-Operative Credit Society Limited, Baramati and Smt. Swati Kailas Sainkar, R/at : Pune were not made accused in the Charge Sheet of the offence registered under C.R. No. 673/2020 at Deccan Police Station.

6. While mentioning about the contents of the crime in the offence registered at Shikrapur Police Station in the Affidavit filed by the then Dy. Commissioner of Police, Economic Offence Wing, Pune City Bhagyashree Navtakke on 24/07/2021 in Writ Petition No. 713, 714, 715/2021 in Hon'ble High Court, Mumbai, the very contents are cited, which were mentioned in the complaint of the offence lodged in offence registered at Shikrapur Police Station vide C.R. No. 754/2020 and it has been mentioned in the said contents that, Shekhar Sonalkar has deposited many Benami Receipts in the account through the Liquidator. Charge sheet is not recorded against Shekhar Sonalkar in that regard.
7. As the Special Public Prosecutor Mr. Praving Chavan has looked after the proceedings of Writ Petition No. 98/2011 filed at Hon'ble High Court, Aurangabad, as an Advocate of the Accused Mr. Pramod Raisonny, a recommendation has been made for appointing him as Special Public Prosecutor in all three registered offences.
8. During the investigation of the crime at C.R. No. 03/2021 Kothrud, the Spot Panchanama of the residence of the applicant at Pune was carried out on 09/01/2021, wherein, it appears that, a Laptop of Asus Company has been seized at Sr. No. 9 of the List of Muddemal (Property) seized and a Laptop of Dell Company at Sr. No. 9 thereof. Said seized laptops were not sought by the Investigating Officer Smt. Khokale in C.R. No. 673/2020 at Deccan Police Station. Further, any follow-up was not made in respect of demand of forensic image of such laptop. Therefore, an issue was not tallied about, whether said laptops were used for filling tenders in the BHR E-Tender Process or what.
9. Perusing the official note in crime bearing C.R. No. 673/2020 at Deccan Police Station, doubt arises in respect of genuineness of the said note.
10. Considering said circumstances, the Home Department has scrutinized the answers received from the concerned officers mentioned hereinabove. On the basis of statements of the then Police Commissioner, Pimpri Chinchwad Mr. Krushna Prakash and the then Superintendent of Pune Rural Dr. Abhinav Deshmukh it revealed that, the then Senior Officer in Police of Pune City have performed important role in lodging said crimes by following erroneous procedure. The clarifications given by the concerned officers are evasive and



misleading and contrary and very unsatisfactory. These officers have not only violated the law deliberately, but also compelled the other concerned officers in the adjacent limits to violate established procedure. As co-operation and proper response is not getting from these officers in this process, the Home Department and the office of the Director General of Police, Maharashtra State arrived at a conclusion that, criminal investigation is required to uncover the truth in respect of behaviour on their part.

In all, perusing the directions given by the Government and Director General of Police in this case, inquiry conducted by the Crime Investigation Department and clarifications received vide Reference Nos. 4 and 5 in the letter of the Government dated 20/08/2024, it is getting clear that, all three registered offences are lodged by the then Dy. Commissioner of Police, Economic and Cyber Crime Smt. Bhagyashree Navtakke and others in conspiracy at three places back to back within 24 hours without applying any conscience, merely after conducting short primary inquiry. Out of those, the Complainant in the crime lodged at Alandi and Deccan Police Station was not present in person. Though all three lodged crimes are pertaining to fraud of less than Rupees Three Cores, investigation of the said crimes has been taken in hand by the Economic Offence Wing without following the procedure prevailed for investigation of such crimes. Further, it appears that, the raid action has been taken by sending joint squads at a same place outside the limits of Pune City Commissionerate. In the investigation of the crimes recorded with the police units at Pimpri Chinchwad and Pune, it has been compelled to lodge crime by unreasonably by causing interference and influence. Before lodging crimes, the Complainants were deliberately and specially picked from Pune and vicinity. In this case, it has been noticed that various acts are done like making selective accused, sending selective charge sheets, showing crime at large scale, conflict of interest by appointing concerned person as Special Public Prosecutor, deliberate negligence towards serious evidences, falsifying official notes etc. In this case, as per the directions received as above from the Government and office of the Director General of Police and with reference to the draft of First Information Report and Order as above received from the office of Police Commissioner, Pune City, we, as per the Government order, have complaint on behalf of Government against Smt. Bhagyashree Navtakke and others under Section 34, 120(B), 166, 167, 177, 193, 201, 203, 219, 220, 466, 474 of I.P.C.

Copy of FIR No. 0240/2024 dated 27.08.2024 of PS Bundgarden, Pune City, is enclosed.



[TO BE PUBLISHED IN THE GAZETTE OF INDIA, PART-II, SECTION 3, SUB-SECTION (ii)]
GOVERNMENT OF INDIA
MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES AND PENSIONS
(DEPARTMENT OF PERSONNEL AND TRAINING)

New Delhi, dated, the 16th October, 2024

NOTIFICATION

S.O. — In exercise of the powers conferred by sub-section (1) of section 5 read with section 6 of the Delhi Special Police Establishment Act, 1946 (Act No. 25 of 1946), the Central Government with the consent of State Government of Maharashtra, issued vide Order No: Complaint-1924/CR.74/POL-2, Dated 30.08.2024, Home Department, Second Floor, Mantralaya (Main buldg.), Mumbai, hereby extends the powers and jurisdiction of the members of the Delhi Special Police Establishment in the whole of the State of Maharashtra for conducting investigation in C.R. No. 240/2024 dated 27.08.2024 registered at Bund Garden Police Station, Pune City against Smt. Bhagyashree Navtake and others for offences u/s 34, 120-B, 166, 167, 177, 193, 201, 203, 219, 220, 466, 474 of IPC and any other offence(s) which may come to light including any attempt, abetment and/or conspiracy, in relation to or in connection with one or more such offences and/or any other offence(s) committed in the course of the same transaction or arising out of the same facts.

[F. No. 228/81/2024-AVD-II]



(Satyam Srivastava)

Under Secretary to the Government of India

To,

The Manager,
Govt. of India Press,
Mayapuri, Ring Road,
New Delhi-110064

F. No. 228/81/2024-AVD-II

New Delhi dated: 16.10.2024

Copy to:

- (i) The Chief Secretary, Government of Maharashtra, Main Building Mantralaya, Mumbai-400032.
- (ii) The Director, Central Bureau of Investigation (CBI), CGO Complex, New Delhi.
- (iii) Director of Prosecution, Central Bureau of Investigation (CBI), CGO complex, New Delhi.
- (iv) Notification & Statistics Maintenance Cell, Room No. 10, 9th Floor, DoP, CBI, CGO Complex, New Delhi-110003.
- (v) Guard File.



(Satyam Srivastava)

Under Secretary to the Government of India

TOP SECRET

Annexure-B



Government of Maharashtra

Home Department, Second Floor, Mantralaya (Main bldg.),
Madame Cama Road, Hutatma Rajguru Chowk, Mumbai-400032.

email id : home.pol2@maharashtra.gov.in

No : Complaint-1924/CR.74/POL-2

Date: 30 August, 2024

Ref. No : पोमसं/22/गुरनं-240/2024/सीबीआय-तपास वर्ग/231/2015,
Dated : 28.08.2024.

ORDER

In pursuance of the provisions of Section 6 of the Delhi Special Police Establishment Act, 1946 (Act No.25 of 1946) and all other powers enabling him in this behalf, the Governor of State of Maharashtra is pleased to accord the consent to the extension of powers and jurisdiction of the members of the Delhi Special Police Establishment in the whole of the State of Maharashtra for conducting investigation in C.R.No.240/2024 dated 27.08.2024 registered at Bund Garden Police Station, Pune City against Smt. Bhagyashree Navtake and others for offences U/s 34,120-B,166,167,177,193,201,203,219,220,466,474 of IPC and any other offence(s) which may come to light including any attempt, abetment and conspiracy in relation to or in connection with one or more such offences and/or any other offence(s) committed in the course of the same transaction or arising out of the same facts.

By order and in the name of the Governor of Maharashtra,

(Venkatesh Bhat)

Joint Secretary to Government.

Copy forwarded for information and necessary action to :

- ✓ 1) Secretary, DoPT, Govt. of India, New Delhi.
- 2) Director, CBI, New Delhi.
- 3) DGP, Maharashtra.

N.C.R.B

I.I.F. - I (Integrated Investigation Form - 1)

FIRST INFORMATION REPORT

(Under Section 173 B.N.S.S.)

1. District : Pune City
FIR No. : 0240P. S. : Bundgarden
Date and Time of FIR :
27/08/2024 At 17 : 34

Year : 2024

2.

S. Nos.	Acts	Sections
1	Indian Penal Code, 1860	474
2	Indian Penal Code, 1860	466
3	Indian Penal Code, 1860	34
4	Indian Penal Code, 1860	220
5	Indian Penal Code, 1860	219
6	Indian Penal Code, 1860	203
7	Indian Penal Code, 1860	201
8	Indian Penal Code, 1860	193
9	Indian Penal Code, 1860	177
10	Indian Penal Code, 1860	167
11	Indian Penal Code, 1860	166
12	Indian Penal Code, 1860	120-B

3. (a) Occurrence of Offence :

1. Day : Mid-days

Date from :
15/11/2020Date to :
10/11/2022

Time Period :

Time From :
00 : 01Time to :
00 : 00

(b) Information received at P. S. :

Date :
27/08/2024Time :
17 : 07

(c) General diary Reference

Entry No. :
025

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N.C.R.B

I.I.F. - I (Integrated Investigation Form - 1)

Date and Time :
27/08/2024
17 : 07 Hours

4. Type of Information : Written

5. Place of Occurrence

1. (a) Direction and Distance from P. S. : Beat No.
Southeast, 0.5 K.M
- (b) Address : Police Commissioner Office, Pune City
- (c) In case, outside limit of this Police Station, then Name of P.S.
District (State)

6. Complainant/ Informant :

- (a) Name : Nikhil Nandkumar Pingale
- (b) Father/ Husbands Name :
- (c) Date/Year of Birth : (d) Nationality : Indian
1990
- (e) UID No. :
- (f) Passport No. : Date of Issue :
Place of Issue :
- (g) ID details (Ration Card, Voter ID Card, Passport, UID No. Driving :

Sr. No.	ID Type	ID Number
1.		

(h) Address :

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N.C.R.B

I.I.F. - I (Integrated Investigation Form - 1)

Sr. No.	Address Type	Address
1	Present address	Pune City, Bundgarden, Pune City, Maharashtra, India
2.	Permanent address	Police Commissioner Office, Pune City, Pune City, Maharashtra, India

(i) Occupation :

(j) Phone Number :

Mobile No. :
91 - 8308880400

7. Details of known/suspected/unknown accused with full particulars :

Sr. No.	Address Type	Alias	Relative's Name	Present Address
1	Bhagyashree Navtakke			1. C/31, Queens Gardens, Gulmohar, Town / Village Government Officer Quarters, Tehsil : Police Station : Bundgarden, District : Pune, State : Maharashtra, India.

8. Reasons for delay in reporting by the complainant/informant :

9. Particulars of properties of interest :

Sr. No.	Property category	Property type	Description	Value (In Rs.)
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10. Total value of property stolen :

11. Inquest Report/U.D. Case No., if any :

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N.C.R.B

I.I.F. - I (Integrated Investigation Form - 1)

S. No.	UIDB Number
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12. First information contents :

As per C. R. No. 240/2024 Bundgarden Police Station under Section 120 (B), 166, 167, 177, 193, 34, 201, 203, 219, 220, 466, 474 of Indian Penal Code, 1860,

Registering Officer - Nikhil Pingale, Dy. Commissioner of Police, Crime Branch, Pune City
Name and address of the Complainant - Nikhil Nandkumar Pingale, Age 33 years, Dy. Commissioner of Police, Crime Branch, Pune City, M. No. 8308880400 Aadhar No. 629012734449
Email ID nn.pingale@ips.gov.in

Date and place of where crime happened : Between 00.01 of Dt. 15/11/2020 to 00.00 of 10/11/2022
Police Commissioner Office, Pune City.

Cause for delay - After order received from the Government and Office of the Director General of Police

Facts in brief - I, Nikhil Pingale, Dy. Commissioner of Police, Crime, remain present in person in the office of Police Commissioner, Pune City and as we have been ordered to lodge complaint on behalf of the said Government vide the Order of Police Commissioner, Pune City bearing No. PoAa/Vachack/Firyad-Aadesh/243/2024 Dt. 27/08/2024, our complaint is as under

A confidential letter bearing No. Takrar-1924/Pra.Kra. 74/PoLa-2 Date 20/08/2024 signed by the Jr. Secretary, Home Department, Government of Maharashtra has been forwarded to the Director General of Police, Maharashtra State, Mumbai. Wherein, it has been stated that, with reference to the Inquiry Report in respect of action taken in respect of the complaint lodged by the Applicants Mr. Sunil Devkinandan Zanvar and Mr. Kunal Shah pertaining to three crimes registered in Pune District in November, 2020 in respect of Bhaichand Hirachand Ransony Multistate Co-Op. Credit Society at Jalgaon, the office of the Director General of Police, sent the report vide his letter dated 19.03.2024 to the Government for appropriate action. In this regard, Mr. Amitabh Gupta, the then Police Commissioner, Pune city vide letters Dt. 08.05.2024, Dt. 19.06.2024 and Dt. 12.08.2024, Mr. Krushna Prakash, the then Police Commissioner, Pimpri - Chinchwad vide his letter Dt. 14.05.2024, Dr. Abhinav Deshmukh, the then Superintendent of Police, Pune Rural vide his letters Dt. 09.05.2024 and 02.07.2024 and Smt. Bhagyashree Navtakke, the then Dy. Commissioner of Police, Economic Offense Wing, Pune City vide her letter Dt. 28.06.2021, furnished their clarifications to the Government and the Government has taken those into consideration. Vide a letter Dt. 10.08.2024 referred at Sr. No. 7, the Director General of Police, Maharashtra State, Mumbai, has submitted his opinion in respect of involvement of aforementioned concerned officers in the said case and their decision process and the Government is concurrent with the self-explanatory opinion furnished vide the said letter of Director General of Police, Maharashtra State, Mumbai. The action proposed vide Para No. 5 of the said letter is as under

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I.I.F. - I (Integrated Investigation Form - I)

may continue to consider pursuance of a police investigation to bring the matter to its logical conclusion.

Government is hereby giving consent for taking action in accordance with the aforementioned paragraph of Director General of Police, Maharashtra State, Mumbai and further action be taken accordingly with immediate effect. Said letter of the Government has been received by the office of the Police Commissioner, Pune City alongwith the letter sent from the office of Director General of Police, Maharashtra State, Mumbai bearing No. PoMaSa/22/Bhaichand Hirachand Raisonny/ Patsanstha Gunhe / 231/2015, Dt. 20/08/2024, signed by The Special Inspector General of Police, Law and Order, Mr. Chering Dorje.

After perusing the said letter received as such, as it became mandatory to lodge offence for carrying out police investigation in the said case, vide a letter bearing O. No. PoAa/Pune Shahar / BHR - Patsanstha Gunhe / 57/2024, Dt. 21/09/2024, the Police Commissioner, Pune City has sought from the office of Director General of Police copies of report / Papers referred at Sr. Nos. 1 to 7 as mentioned in the letter of the Government alongwith concerned documents for arriving at the aforementioned conclusion in the said case.

With reference to the said letter, the letters and documents mentioned in the Government's letter are received from the office of Director General of Police. Perusing those document, it appeared that, specific issues are revealed. Further, it has been mentioned in the Inquiry Report of the Crime Investigation Department found in the papers received from the office of Director General of Police that, following issues are revealed.

1. Three offences viz. (1) C. R. No. 306/2000, Alandi Police Station, Pimpri Chinchwad, (2) C. R. No. 673/2000, Deccan Police Station, Pune City, and (3) C. R. No. 754/2000, Shikrapur Police Station, Pune Rural are filed immediately back to back on the very day. In view of time of lodging the said offences it appears that, action has been taken with coordination between the police units of Pune City, Pimpri Chinchwad and Pune Rural. The raid action at Jalgaon in all three offences has been taken jointly.
2. With reference to the complaints lodged by the complainant in all three aforementioned offences, it appears that short primary inquiry action has been taken. In all three offences, the Primary Inquiry Reports in respect of the complaint of the Applicant are not available on records. While registering the C.R. No. 306/2020 at Alandi Police Station, the complainant Smt. Malati Avinash Sable was not present in the police station in person. Still, Smt. Prerna Katte has registered the crime hurriedly. While registering the C.R. No. 673/2020 at Deccan Police Station, the Complainant Mrs. Ranjana Ghorpade was not present in the police station in person, still the offence was lodged. There is a scope to arrive at conclusion that the offences are lodged over there hurriedly by neglecting the prevailing procedure and with some intentions.
3. It is mentioned in the Affidavit filed by the then Dy. Commissioner of Police, Economic Offense Wing, Pune City Bhagyashree Navtakke on 24/07/2021 in Writ Petition No. 713, 714, 715/2021 in Hon'ble High Court, Mumbai that, charge sheet has not been filed against Ajay Lalwani, Uday Kankaria, Sureshkumar Bakimchand Jain and Rajesh Suresh Jain.

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L.I.F. - 1 (Integrated Investigation Form - 1)

4. While carrying out valuation of the properties mentioned in the offence through Mr. Ankalagi, the Valuer appointed in the said crimes by the Economic Offence Wing, Pune City, the distress value of the properties was not taken into consideration. The issue that, the said properties were sold in auction in the process of liquidation of the Bhaichand Hirachand Raisonry Credit Society, was also not taken into consideration while carrying out valuation. It appeared that, the valuation of all those properties of BHR carried out by the Mr. Ankalagi, found less than the valuation carried out by all other valuers.
5. In the Forensic Audit Report, Neha Phadake has stated that, the Purchaser, Sai Seva Urban Co-Operative Credit Society Limited, Baramati who have participated in the E-Tender process of the BHR Credit Society, has purchased the property bearing Shop No. 15, Avdhooth Arcade, Ambegaon Bk., Pune admeasuring about 35.68 sq.mtrs. and while purchasing the same, out of the total amount, it has paid 92.19 percent amount in term of Deposit Receipts lying in it's name itself. It also appears that, after purchasing the property, the said property has been sold to Smt. Swati Kailas Sainkar, R/at : Pune. It appears that, Sai Seva Urban Co-Operative Credit Society Limited, Baramati and Smt. Swati Kailas Sainkar, R/at : Pune were not made Accused in the Charge Sheet of the offence registered under C.R. No. 673/2020 at Deccan Police Station.
6. While mentioning about the contents of the crime in the offence registered at Shikrapur Police Station in the Affidavit filed by the then Dy. Commissioner of Police, Economic Offense Wing, Pune City Bhagyashree Navtakke on 24/07/2021 in Writ Petition No. 713, 714, 715/2021 in Hon'ble High Court, Mumbai, the very contents are cited, which were mentioned in the complaint of the offence lodged in offense registered at Shikrapur Police Station vide C.R. No. 754/2020 and it has been mentioned in the said contents that, Shekhar Sonalkar has deposited many Benami Receipts in the account through the Liquidator. Charge sheet is not recorded against Shekhar Sonalkar in that regard.
7. As the Special Public Prosecutor Mr. Pravin Chavan has looked after the proceedings of Writ Petition No. 98/2011 filed at Hon'ble High Court, Aurangabad, as an Advocate of the Accused Mr. Pramod Raisonry, a recommendation has been made for appointing him as Special Public Prosecutor in all three registered offences.
8. During the investigation of the crime at C.R. No. 03/2021 Kothrud, the Spot Panchanama of the residence of the Applicant at Pune was carried out on 09/01/2021, wherein, it appears that, a Laptop of Asus Company has been seized at Sr. No. 9 of the List of Muddemal (Property) seized and a Laptop of Dell Company at Sr. No. 9 thereof. said seized laptops were not sought by the Investigating Officer Smt. Khokale in C.R. No. 673/2020 at Deccan Police Station. Further, any follow-up was not made in respect of demand of forensic image of such laptop. Therefore, an issue was not tallied about, whether said laptops were used for filling tenders in the BHR E-Tender Process or what.
9. Perusing the official note in crime bearing C. R. No. 673/2020 at Deccan Police Station, doubt arises in respect of genuineness of the said note.
10. Considering said circumstances, the Home Department has scrutinized the answers received from the concerned officers mentioned hereinabove. On the basis of statements of the then Police Commissioner, Pimpri Chinchwad Mr. Krushna Prakash and the then Superintendent of Pune Rural Dr. Abhinav Deshmukh it revealed that, the then Senior Officer in Police of Pune

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Language Pair - Marathi ⇌ English
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TRUE TRANSLATION

MR. RAJESH SIDRAM DASA

R/at : Flat No. 501, Paramount Gardens, Katraj-Kandhwa
Road, Gokulnagar, Katraj, Pune - 411046.
Mobile No. : 9850814632 Email : rajeshdasa08@gmail.com



I.I.F. - I (Integrated Investigation Form - 1)

City have performed important role in lodging said crimes by following erroneous procedure. The clarifications given by the concerned officers are evasive and misleading and contrary and very unsatisfactory. These officers have not only violated the law deliberately, but also compelled the other concerned officers in the adjacent limits to violate established procedure. As co-operation and proper response is not getting from these officer in this process, the Home Department and the office of the Director General of Police, Maharashtra State arrived at a conclusion that, criminal investigation is required to uncover the truth in respect of behavior on their part.

In all, perusing the directions given by the Government and Director General of Police in this case, inquiry conducted by the Crime Investigation Department and clarifications received vide Reference Nos. 4 and 5 in the letter of the Government dated 20/08/2024, it is getting clear that, all three registered offences are lodged by the then Dy. Commissioner of Police, Economic and Cyber Crime Smt. Bhagyashree Navtakke and Others in conspiracy at three places back to back within 24 hours without applying any conscience, merely after conducting short primary inquiry. Out of those, the Complainant in the crime lodged at Alandi and Deccan Police Station was not present in person. Though all three lodged crimes are pertaining to fraud of less than Rupees Three Crores, investigation of the said crimes has been taken in hand by the Economic Offense Wing without following the procedure prevailed for investigation of such crimes. Further, it appears that, the raid action has been taken by sending joint squads at a same place outside the limits of Pune City Commissionerate. In the investigation of the crimes recorded with the police units at Pimpri Chinchwad and Pune, it has been compelled to lodge crime by unreasonably by causing interference and influence. Before lodging crimes, the Complainants were deliberately and specially picked from Pune and vicinity. In this case, it has been noticed that various acts are done like making selective accused, sending selective charge sheets, showing crime at large scale, conflict of interest by appointing concerned person as Special Public Prosecutor, deliberate negligence towards serious evidences, falsifying official notes etc. In this case, as per the directions received as above from the Government and office of the Director General of Police and with reference to the draft of First Information Report and Order as above received from the office of Police Commissioner, Pune City, we, as per the Government order, have complaint on behalf of Government against Smt. Bhagyashree Navtake and others under Section 34, 120(B), 166, 167, 177, 193, 201, 203, 219, 220, 466, 474 of I.P.C.

Further investigation - Mr. Vivek Masal, Dy. Police Commissioner, Economic and Cyber Crimes, Pune City. Mo. No. 7718076868.

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N.C.R.B

I.I.F. - I (Integrated Investigation Form - 1)

13. Action taken : Since the above information reveals commission of offence(s) u/s. as mentioned at Item No. 2,

(1) Registered the case and took up the Investigation :

RAVINDRA MANOHAR GAIKWAD (Police Inspector)

Or

(2) Directed (Name of I.O.) :

Rank :

No. :

to take up the investigation

Or

(3) Refused Investigation due to

Or

(4) Transferred to P.S. :

District :

on point of jurisdiction :

F.I.R. read over to the complainant/informant, admitted to be correctly recorded as given to the complainant/informant free of cost.

R.O.A.C.

Sd/-

Signature of Officer in charge Police Station

Name : RAVINDRA
MANOHAR GAIKWAD

Rank : I (Inspector)

No. : POBN72854

14. Signature/Thumb impression of the complainant / informant :

15. Date and time of dispatch to the court :

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N.C.R.B

I.I.F. - I (Integrated Investigation Form - 1)

Attachment to item 7 of First Information Report :

Physical features, deformities and other details of the suspect/accused : (If known)

S. No.	Sex	Date / Year of Birth	Build	Height	Complexion	Identification mark(s)
1	2	3	4	5	6	7
1	Female	1988		-		
						Pox :

Deformities / Peculiarities	Teeth	Hair	Eyes	Habit(s)	Dress Habit(s)
8	9	10	11	12	13

Language / Dialect	Place of					Others
	Burn Mark	Leucoderma	Mole	Scar	Tattoo	
14	15	16	17	18	19	20

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect / accused.

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Attachment to item 7 of First Information Report

S.No.	(Sex)	Date/Year of Birth	(Built)	(Height) (in cms)	(Complexion)	(Identification Mark/s)
1	2	3	4	5	6	7

(Deformities/ peculiarities)	(Teeth)	(Hair)	(Eye)	(Habits)	(Dress Habit/s)
8	9	10	11	12	13

(Language / Dialect)	(Burn Mark)	(Leucoderma)	(Mole)	Place of (Scar)	(Tattoo)
14	15	16	17	18	19

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.



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Endst. No. 3722 / 1 / 1 12(S)/2024/SC-III/CBI/ND

Dated: 16/10/2024

Copy forwarded to the following for information & further necessary action:-

- (1) The Chief Judicial Magistrate, Pune, Shivaji Complex, Pune, Maharashtra.
- (2) The Secretary, DoPT, Govt. of India, New Delhi.
- (3) The Chief Secretary, Govt. of Maharashtra.
- (4) The Director General of Police, Maharashtra.
- (5) Head of Zone (Special Crime), CBI, HO, New Delhi.
- (6) Head of Branch, CBI/SC-III/New Delhi.
- (7) Shri. Nikhil Nandkumar Pingale, DCP, Crime Branch, Pune, City, Maharashtra. (Complainant).
- (8) Shri H. S. Sachan, Addl. SP of Police, CBI, SC-III, New Delhi.
- (9) Crime Section, CBI/SC-III/New Delhi.
- (10) Guard File.


(Rajbir Singh)
Supdt. of Police
CBI/SC-III/New Delhi
राजबीर सिंह/RAJBIR SINGH
पुलिस अधीक्षक/Supt. of Police
कै. ज. ब्यूरो, वि. ज. - III, नई दिल्ली
CBI, SC-III, New Delhi